Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,	**Case No.: CGC-25-631802**
PLAINTIFF,	(Related to CGC-21-594102)
v.	
CSAA Insurance Exchange;	**PLAINTIFF'S REQUESTS FOR ADMISSION**
and DOES 1 through 50, inclusive;	
DEFENDANTS	Code Civ. Proc., § 2033.010 et seq.

INSTRUCTIONS

The following Requests for Admission are propounded to Defendant CSAA Insurance Exchange pursuant to Code Civ. Proc., § 2033.010 et seq. Responses are due within 30 days of service. Failure to timely respond shall result in a motion to deem the matters admitted pursuant to Code Civ. Proc., § 2033.280.

HOLD FOR SERVICE: These RFAs are to be served immediately upon CSAA filing a responsive pleading.

THE DENIAL LETTER AND ITS REPRESENTATIONS

REQUEST FOR ADMISSION NO. 1:

Admit that CSAA Insurance Exchange issued a denial letter to Plaintiff Franciscus Dylan Rosario

dated February 25, 2021, regarding a claim arising from the February 4, 2021 collision involving its insured, Subhi Abdelhalim.

REQUEST FOR ADMISSION NO. 2:

Admit that the February 25, 2021 denial letter stated, in substance, that CSAA had "concluded" its investigation of the claim.

REQUEST FOR ADMISSION NO. 3:

Admit that the February 25, 2021 denial letter stated, in substance, that CSAA had "concluded" that its insured, Subhi Abdelhalim, was "not liable" for the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 4:

Admit that the February 25, 2021 denial letter was intended to communicate to the claimant that CSAA had completed its investigation and reached a final determination on liability.

REQUEST FOR ADMISSION NO. 5:

Admit that a reasonable claimant receiving the February 25, 2021 denial letter would understand it to mean that CSAA had obtained and reviewed relevant evidence before determining that its insured was not liable.

INVESTIGATION STANDARDS AND PROCEDURES

REQUEST FOR ADMISSION NO. 6:

Admit that industry standards for investigating third-party automobile liability claims include obtaining police reports and related law enforcement documentation when law enforcement responded to the incident.

REQUEST FOR ADMISSION NO. 7:

Admit that when law enforcement responds to a vehicle-pedestrian collision, a reasonable and complete investigation would include obtaining the 911 call recording, body-worn camera footage, and computer-aided dispatch records.

REQUEST FOR ADMISSION NO. 8:

Admit that a reasonable and complete investigation of a pedestrian-vehicle collision claim would include obtaining and reviewing statements made by the insured driver to 911 operators and/or responding law enforcement officers.

REQUEST FOR ADMISSION NO. 9:

Admit that CSAA Insurance Exchange's claims-handling procedures require adjusters to obtain police records when law enforcement responded to an incident before issuing a liability determination.

KNOWLEDGE OF LAW ENFORCEMENT INVOLVEMENT

REQUEST FOR ADMISSION NO. 10:

Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that law enforcement responded to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 11:

Admit that when law enforcement responds to a collision, records including 911 call recordings, body-worn camera footage, and dispatch logs are routinely generated.

REQUEST FOR ADMISSION NO. 12:

Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that a 911 call had been placed in connection with the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 13:

Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that body-worn camera footage existed from law enforcement officers who responded to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 14:

Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that its own insured, Subhi Abdelhalim, may have made statements to the 911 operator, responding officers, or other persons at the scene of the February 4, 2021 collision.

THE POLICE REPORT: ACKNOWLEDGMENT, CONTENT, AND DEFICIENCIES

REQUEST FOR ADMISSION NO. 15:

Admit that a police report was generated by law enforcement in response to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 16:

Admit that the police report relating to the February 4, 2021 collision clearly describes or references a CAD (computer-aided dispatch) number.

REQUEST FOR ADMISSION NO. 17:

Admit that the police report relating to the February 4, 2021 collision describes that Plaintiff Franciscus Dylan Rosario reported injury in connection with the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 18:

Admit that relying exclusively on a police report does not constitute a complete investigation of a third-party bodily injury liability claim when 911 call recordings, body-worn camera footage, and eyewitness statements are available or obtainable.

REQUEST FOR ADMISSION NO. 19:

Admit that under California law and industry standards, a complete investigation of a vehicle-pedestrian collision claim requires obtaining and reviewing statement evidence from the 911 call, body-worn camera footage, and eyewitness statements, when such materials are available, before concluding the investigation and issuing a liability determination.

REQUEST FOR ADMISSION NO. 20:

Admit that the police report relating to the February 4, 2021 collision does not acknowledge or include the statement made by Subhi Abdelhalim to the 911 operator that he had hit the pedestrian, including the statements verbatim as described in the official 911 transcript: (a) "He cross from me, and he's barely hitting anything, but I'm calling for him," and (b) "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him."

REQUEST FOR ADMISSION NO. 21:

Admit that the police report relating to the February 4, 2021 collision does not include or reference the body-worn camera footage of eyewitness statements at the scene of the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 22:

Admit that the police report relating to the February 4, 2021 collision does not state that Plaintiff Franciscus Dylan Rosario reported in the 911 call that the driver Subhi Abdelhalim struck him

with a van.

REQUEST FOR ADMISSION NO. 23:

Admit that the police report relating to the February 4, 2021 collision does not include the multiple statements in the body-worn camera footage from Plaintiff Franciscus Dylan Rosario that Subhi Abdelhalim hit him.

REQUEST FOR ADMISSION NO. 24:

Admit that under California law, the 911 audio recording containing the insured's admission, the body-worn camera footage containing eyewitness statements that the driver hit the pedestrian, and the body-worn camera footage containing Plaintiff's statements that Abdelhalim hit him, constitute evidence that would support a possible finding of liability against the insured.

REQUEST FOR ADMISSION NO. 25:

Admit that a closed investigation and final liability determination under California law and industry standards requires that such statement evidence (including the 911 party admission, eyewitness body-worn camera statements, and victim statements from body-worn camera footage) be obtained and addressed before concluding that an insured is not liable.

SCOPE OF CSAA'S PRE-DENIAL INVESTIGATION

REQUEST FOR ADMISSION NO. 26:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not contacted the San Francisco Police Department to request records relating to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 27:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not contacted the San Francisco Department of Emergency Management to request records relating to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 28:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained any medical records or documentation regarding injuries sustained by Plaintiff in the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 29:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not retained an accident re-

construction expert, biomechanical expert, or any third-party investigator to evaluate the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 30:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not interviewed its own insured, Subhi Abdelhalim, under oath or through a recorded statement regarding the circumstances of the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 31:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained a copy of Subhi Abdelhalim's driver's license record or driving history.

REQUEST FOR ADMISSION NO. 32:

Admit that as of February 25, 2021, the only source of information CSAA Insurance Exchange had obtained regarding the circumstances of the February 4, 2021 collision was the account provided by its own insured, Subhi Abdelhalim.

REQUEST FOR ADMISSION NO. 33:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained the 911 call audio recording generated by law enforcement in response to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 34:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained body-worn camera footage generated by law enforcement officers who responded to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 35:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained computer aided dispatch (CAD) records generated by law enforcement in response to the February 4, 2021 collision.

TIMELINE AND OBTAINABILITY

REQUEST FOR ADMISSION NO. 36:

Admit that the 911 audio recording, body-worn camera footage, and CAD records relating to the February 4, 2021 collision were obtainable through routine public records requests as of February

25, 2021.

REQUEST FOR ADMISSION NO. 37:

Admit that Plaintiff's counsel (Dolan Law Firm) obtained the 911 audio recording on May 12, 2021, less than three months after the February 4, 2021 collision.

CSAA'S FUNDING AND OVERSIGHT OF THE DEFENSE

REQUEST FOR ADMISSION NO. 38:

Admit that CSAA Insurance Exchange funded the defense of *Rosario v. Abdelhalim*, Case No. CGC-21-594102, through retained defense counsel (including Chambers, subsequently Carbone Smith & Koyama, and subsequently Phillips, Spallas & Angstadt LLP).

REQUEST FOR ADMISSION NO. 39:

Admit that CSAA Insurance Exchange maintained a claims file for the bodily injury liability claim arising from the February 4, 2021 collision, and that the claims file was updated with information from the related litigation, CGC-21-594102, during the period the case was pending.

REQUEST FOR ADMISSION NO. 40:

Admit that CSAA Insurance Exchange received periodic reports, updates, or summaries from retained defense counsel regarding the status of the litigation in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, between May 2023 and January 2025.

POST-DENIAL DISCOVERY PRODUCTION AND CSAA'S ACCESS

REQUEST FOR ADMISSION NO. 41:

Admit that the 911 audio recording, body-worn camera footage, and CAD records were produced to defense counsel representing Abdelhalim in discovery in the underlying action, *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

REQUEST FOR ADMISSION NO. 42:

Admit that the 911 audio recording, body-worn camera footage, and CAD records were used at the deposition of Franciscus Dylan Rosario on August 18, 2022, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

REQUEST FOR ADMISSION NO. 43:

Admit that the 911 audio recording, body-worn camera footage, and CAD records were used at

the deposition of Subhi Abdelhalim on September 30, 2022, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

REQUEST FOR ADMISSION NO. 44:

Admit that after February 25, 2021, CSAA Insurance Exchange or persons acting on its behalf obtained, reviewed, or caused to be obtained any law enforcement records relating to the February 4, 2021 collision, including but not limited to the 911 audio recording, body-worn camera footage, CAD records, or police incident reports.

REQUEST FOR ADMISSION NO. 45:

Admit that after February 25, 2021, CSAA Insurance Exchange continued to evaluate, reassess, or monitor the bodily injury liability claim arising from the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 46:

Admit that CSAA Insurance Exchange set or adjusted reserves on the bodily injury liability claim arising from the February 4, 2021 collision at any time after February 25, 2021.

REQUEST FOR ADMISSION NO. 47:

Admit that at some point after February 25, 2021, CSAA Insurance Exchange or its retained defense counsel obtained or received copies of the 911 audio recording, body-worn camera footage, and/or CAD records relating to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 48:

Admit that prior to January 17, 2025, CSAA Insurance Exchange was aware that the 911 audio recording, body-worn camera footage, and CAD records had been served on defense counsel by Plaintiff's counsel during discovery in CGC-21-594102.

REQUEST FOR ADMISSION NO. 49:

Admit that prior to January 17, 2025, CSAA Insurance Exchange had listened to, reviewed, or been briefed on the contents of the 911 audio recording in which its insured, Subhi Abdelhalim, stated, verbatim as described in the official 911 transcript: (a) "He cross from me, and he's barely hitting anything, but I'm calling for him," and (b) "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him."

THE MOTIONS IN LIMINE AND CSAA'S ROLE

REQUEST FOR ADMISSION NO. 50:

Admit that Motions in Limine Nos. 6 and 17, filed by defense counsel in *Rosario v. Abdelhalim*, CGC-21-594102, on January 17, 2025, stated, in substance, that the 911 audio recording and police records "were not produced in discovery" and were of "unknown provenance."

REQUEST FOR ADMISSION NO. 51:

Admit that CSAA Insurance Exchange reviewed, approved, or was informed of the substance of Motions in Limine Nos. 6 and 17 filed by defense counsel on January 17, 2025, before those motions were filed.

REQUEST FOR ADMISSION NO. 52:

Admit that the representations in Motions in Limine Nos. 6 and 17—that the 911 audio recording and police records "were not produced in discovery" and were of "unknown provenance"—were inconsistent with the sworn testimony of J. Jessup, Esq., who testified on February 18, 2025, that the evidence had been served on defense counsel during discovery.

THE 911 RECORDING: AUTHENTICATION AND CONTENT

REQUEST FOR ADMISSION NO. 53:

Admit that the 911 audio recording contains a statement by Subhi Abdelhalim regarding the February 4, 2021 collision, and that Abdelhalim authenticated the recording at trial on April 17, 2025, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, by stating verbatim: "Yes. That is my voice."

REQUEST FOR ADMISSION NO. 54:

Admit that the 911 audio recording contains a statement by Subhi Abdelhalim to the emergency operator, verbatim as described in the official 911 transcript, including: (a) "He cross from me, and he's barely hitting anything, but I'm calling for him," and (b) "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him."

REQUEST FOR ADMISSION NO. 55:

Admit that a statement by a driver to a 911 operator that he "barely hit" a pedestrian is relevant to the determination of liability in a vehicle-pedestrian collision claim.

REQUEST FOR ADMISSION NO. 56:

Admit that a statement by an insured driver that he "barely hit" a pedestrian would be relevant to CSAA's determination of whether that insured was liable for the collision.

REQUEST FOR ADMISSION NO. 57:

Admit that the body-worn camera footage from Officer Thompson's interview of the eyewitness (Dustin Rosemond) at the scene of the February 4, 2021 collision contains the eyewitness stating, verbatim as read to the jury during Plaintiff's closing argument on April 22, 2025 (RT 10, p. 39, ll. 21–23; RT 10, p. 59, ll. 3–4): "The man in the van hit the guy" and "That man in the van hit the guy who was laying on the ground."

THE UNDERLYING LITIGATION AND OUTCOME

REQUEST FOR ADMISSION NO. 58:

Admit that the underlying lawsuit, *Rosario v. Abdelhalim*, Case No. CGC-21-594102, was filed on July 27, 2021, approximately five months after the February 25, 2021 denial letter.

REQUEST FOR ADMISSION NO. 59:

Admit that the jury in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, returned a 9–3 verdict for the defense on April 25, 2025.

REQUEST FOR ADMISSION NO. 60:

Admit that a 9–3 verdict is the minimum civil majority required for a verdict under California law.

THE LOGICAL CONTRADICTIONS

REQUEST FOR ADMISSION NO. 61:

Admit that if CSAA Insurance Exchange had obtained the 911 audio recording prior to February 25, 2021, CSAA would have heard Subhi Abdelhalim state, verbatim as described in the official 911 transcript, including: (a) "He cross from me, and he's barely hitting anything, but I'm calling for him," and (b) "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him."

REQUEST FOR ADMISSION NO. 62:

Admit that CSAA Insurance Exchange cannot simultaneously maintain that (a) its investigation of the February 4, 2021 collision was "concluded" as of February 25, 2021, and (b) it had not obtained the 911 audio recording containing its insured's statement about the collision.

REQUEST FOR ADMISSION NO. 63:

Admit that CSAA Insurance Exchange cannot simultaneously maintain that (a) its investigation was "concluded" as of February 25, 2021, and (b) it continued to evaluate, reassess, monitor, or adjust reserves on the claim after that date.

REQUEST FOR ADMISSION NO. 64:

Admit that if CSAA Insurance Exchange was aware, at any time prior to January 17, 2025, that the 911 audio recording and related law enforcement records had been served on defense counsel during discovery, and did not correct the representations made in Motions in Limine Nos. 6 and 17, then CSAA permitted materially false representations to be made to the Court on its behalf.

REQUEST FOR ADMISSION NO. 65:

Admit that CSAA Insurance Exchange maintains standardized templates or form language for denial letters issued to third-party bodily injury claimants.

REQUEST FOR ADMISSION NO. 66:

Admit that the phrase "concluded our investigation" (or substantially similar language) appears in denial letters issued by CSAA to other third-party claimants, and is not unique to the February 25, 2021 denial letter.

REQUEST FOR ADMISSION NO. 67:

Admit that CSAA Insurance Exchange's claims-handling procedures include supervisor review or approval of liability denial determinations before issuance of denial letters.

REQUEST FOR ADMISSION NO. 68:

Admit that CSAA Insurance Exchange tracks claim-closure timelines, denial rates, or comparable performance metrics for claims adjusters.

REQUEST FOR ADMISSION NO. 69:

Admit that the only liability-relevant information CSAA Insurance Exchange obtained before issuing the February 25, 2021 denial letter was the account provided by its own insured, Subhi Abdelhalim.

REQUEST FOR ADMISSION NO. 70:

Admit that CSAA Insurance Exchange did not, at any time before February 25, 2021, make any

attempt to contact Plaintiff to obtain his account of the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 71:

Admit that CSAA Insurance Exchange set or adjusted reserves on the claim at any time after issuing the February 25, 2021 denial letter, and that any such reserve change is inconsistent with the claim that the investigation was "concluded" as of that date.

EVIDENCE COLLECTION AND LIABILITY DETERMINATION

REQUEST FOR ADMISSION NO. 72:

Admit that CSAA Insurance Exchange's claims-handling procedures require that evidence collection be completed before a liability determination is issued for third-party bodily injury claims.

REQUEST FOR ADMISSION NO. 73:

Admit that CSAA Insurance Exchange's procedures do not permit a claims adjuster to issue a liability denial until the adjuster has documented what law enforcement records exist and whether they have been requested or obtained when law enforcement responded to the incident.

REQUEST FOR ADMISSION NO. 74:

Admit that the claims file for the February 4, 2021 collision contains no documentation that CSAA attempted to obtain the 911 audio recording, body-worn camera footage, or CAD records before issuing the February 25, 2021 denial letter.

REQUEST FOR ADMISSION NO. 75:

Admit that the adjuster who issued the February 25, 2021 denial letter did not document any request to the San Francisco Police Department or San Francisco Department of Emergency Management for records relating to the February 4, 2021 collision before that date.

REQUEST FOR ADMISSION NO. 76:

Admit that CSAA Insurance Exchange's liability determination for the February 4, 2021 collision was made without having obtained or reviewed any contemporaneous statement evidence from the 911 call, body-worn camera footage, or eyewitnesses at the scene.

REQUEST FOR ADMISSION NO. 77:

Admit that a liability determination cannot truthfully be described as "concluded" when the insurer has not obtained and reviewed foundational objective evidence that is known or reasonably

knowable to exist and that is material to liability.

REQUEST FOR ADMISSION NO. 78:

Admit that the 911 audio recording, body-worn camera footage, and CAD records are material to a liability determination in a vehicle-pedestrian collision claim when law enforcement responded to the incident.

REQUEST FOR ADMISSION NO. 79:

Admit that CSAA Insurance Exchange's liability determination that Subhi Abdelhalim was "not liable" was based solely on information favorable to the insured, without obtaining or reviewing any independent or contemporaneous evidence that could support liability.

REQUEST FOR ADMISSION NO. 80:

Admit that if CSAA Insurance Exchange had obtained and reviewed the 911 audio recording, body-worn camera footage, and eyewitness statements before February 25, 2021, CSAA could not have truthfully issued a denial letter stating it had "concluded" that its insured was "not liable" without addressing that evidence.

REQUEST FOR ADMISSION NO. 81:

Admit that CSAA Insurance Exchange maintains internal guidelines, checklists, or protocols that specify what evidence must be collected or considered before a liability denial is issued for third-party automobile claims.

REQUEST FOR ADMISSION NO. 82:

Admit that the claims file for the February 4, 2021 collision does not contain any notation, checklist entry, or supervisory approval indicating that 911, body-worn camera, or CAD records were considered, requested, or obtained before the February 25, 2021 denial.

REQUEST FOR ADMISSION NO. 83:

Admit that CSAA Insurance Exchange's claims-handling procedures require that a liability denial determination be documented with a summary of the evidence relied upon, and that the February 25, 2021 denial was issued without documentation that any evidence other than the insured's account was relied upon.

REQUEST FOR ADMISSION NO. 84:

Admit that CSAA Insurance Exchange trains or has trained its adjusters that a "concluded" investigation requires completion of evidence collection before a final liability determination is communicated to a claimant.

REQUEST FOR ADMISSION NO. 85:

Admit that CSAA Insurance Exchange did not inadvertently omit obtaining the 911 audio recording, body-worn camera footage, and CAD records; rather, no attempt was made to obtain them before issuing the February 25, 2021 denial letter.

REQUEST FOR ADMISSION NO. 86:

Admit that issuing a denial letter stating an investigation is "concluded" when foundational objective evidence has not been obtained shifts the burden of obtaining and authenticating that evidence onto the claimant.

REQUEST FOR ADMISSION NO. 87:

Admit that a claimant who receives a denial letter stating an investigation is "concluded" would reasonably believe that the insurer had already obtained and reviewed the types of evidence that are routinely generated when law enforcement responds to a collision.

CALIFORNIA INSURANCE CODE AND REGULATORY REQUIREMENTS

INSURANCE CODE § 790.03(H) AND FAIR CLAIMS SETTLEMENT PRACTICES

REQUEST FOR ADMISSION NO. 88:

Admit that California Insurance Code section 790.03(h)(3) requires insurers to adopt and implement reasonable standards for the prompt investigation of claims.

REQUEST FOR ADMISSION NO. 89:

Admit that California Insurance Code section 790.03(h)(3) applies to CSAA Insurance Exchange and requires CSAA to maintain reasonable standards for investigating third-party automobile liability claims.

REQUEST FOR ADMISSION NO. 90:

Admit that a reasonable standard for the prompt investigation of a third-party automobile liability claim when law enforcement responded to the incident would include obtaining and reviewing the 911 call recording, body-worn camera footage, and CAD records before issuing a liability determination.

REQUEST FOR ADMISSION NO. 91:

Admit that CSAA Insurance Exchange's handling of the February 4, 2021 collision claim did not comply with the requirement of Insurance Code section 790.03(h)(3) to adopt and implement reasonable standards for the prompt investigation of claims, in that CSAA issued a liability denial without obtaining the 911 audio recording, body-worn camera footage, or CAD records.

REQUEST FOR ADMISSION NO. 92:

Admit that California Insurance Code section 790.03(h)(1) prohibits misrepresenting to claimants pertinent facts or insurance policy provisions relating to any coverages at issue.

REQUEST FOR ADMISSION NO. 93:

Admit that stating that an investigation has been "concluded" when foundational objective liability evidence has not been obtained or reviewed constitutes a misrepresentation of a pertinent fact within the meaning of Insurance Code section 790.03(h)(1).

REQUEST FOR ADMISSION NO. 94:

Admit that California Insurance Code section 790.03(h)(13) requires insurers to provide promptly a reasonable explanation of the basis relied on in the insurance policy, in relation to the facts or applicable law, for the denial of a claim.

REQUEST FOR ADMISSION NO. 95:

Admit that a reasonable explanation of the basis for a liability denial under Insurance Code section 790.03(h)(13) requires that the insurer have obtained and reviewed the material facts before issuing the denial, and that the February 25, 2021 denial letter was issued without CSAA having obtained or reviewed the 911 audio recording, body-worn camera footage, or CAD records.

REQUEST FOR ADMISSION NO. 96:

Admit that California Insurance Code section 790.03(h)(5) prohibits insurers from not attempting in good faith to effectuate prompt, fair, and equitable settlements of claims in which liability has

become reasonably clear.

REQUEST FOR ADMISSION NO. 97:

Admit that obtaining and reviewing the 911 audio recording, body-worn camera footage, and eyewitness statements is necessary to determine whether liability has become reasonably clear in a vehicle-pedestrian collision claim, and that CSAA could not have made a good faith determination that liability was not reasonably clear without obtaining and reviewing that evidence.

CALIFORNIA CODE OF REGULATIONS, TITLE 10 (FAIR CLAIMS SETTLEMENT PRACTICES)

REQUEST FOR ADMISSION NO. 98:

Admit that California Code of Regulations, title 10, section 2695.7(d) provides: "Every insurer shall conduct and diligently pursue a thorough, fair and objective investigation and shall not persist in seeking information not reasonably required for or material to the resolution of a claim dispute."

REQUEST FOR ADMISSION NO. 99:

Admit that a "thorough" investigation of a third-party automobile liability claim when law enforcement responded to the incident would include obtaining and reviewing the 911 call recording, body-worn camera footage, and CAD records.

REQUEST FOR ADMISSION NO. 100:

Admit that CSAA Insurance Exchange's claims-handling procedures are intended to comply with California Code of Regulations, title 10, section 2695.7(d), and that CSAA is aware of the requirement to conduct and diligently pursue a thorough, fair and objective investigation.

REQUEST FOR ADMISSION NO. 101:

Admit that CSAA Insurance Exchange did not conduct a thorough, fair and objective investigation of the February 4, 2021 collision claim before issuing the February 25, 2021 denial letter, in that CSAA did not obtain or review the 911 audio recording, body-worn camera footage, or CAD records.

REQUEST FOR ADMISSION NO. 102:

Admit that California Code of Regulations, title 10, section 2695.5(e)(3) requires that upon receiving notice of claim, every insurer shall immediately, but in no event more than fifteen (15) calendar

days later, begin any necessary investigation of the claim.

REQUEST FOR ADMISSION NO. 103:

Admit that a necessary investigation of a third-party bodily injury claim arising from a vehicle-pedestrian collision when law enforcement responded would include obtaining law enforcement records, including 911 audio, body-worn camera footage, and CAD records.

REQUEST FOR ADMISSION NO. 104:

Admit that CSAA Insurance Exchange did not begin or diligently pursue a necessary investigation of the February 4, 2021 collision claim by obtaining the 911 audio recording, body-worn camera footage, or CAD records before issuing the February 25, 2021 denial letter.

REQUEST FOR ADMISSION NO. 105:

Admit that California Code of Regulations, title 10, section 2695.3(a) requires that every licensee's claim files shall contain all documents, notes and work papers which reasonably pertain to each claim in such detail that pertinent events and the dates of the events can be reconstructed and the licensee's actions pertaining to the claim can be determined.

REQUEST FOR ADMISSION NO. 106:

Admit that the claims file for the February 4, 2021 collision does not contain documentation of any attempt by CSAA to obtain the 911 audio recording, body-worn camera footage, or CAD records before February 25, 2021, and that the absence of such documentation is inconsistent with the requirement of section 2695.3(a) that claim files contain sufficient detail to reconstruct the licensee's actions pertaining to the claim.

REQUEST FOR ADMISSION NO. 107:

Admit that California Code of Regulations, title 10, section 2695.7(b)(1) requires that every insurer that denies or rejects a third party claim, in whole or in part, or disputes liability or damages shall do so in writing, and that such written denial shall provide a statement listing all bases for such rejection or denial and the factual and legal bases for each reason given.

REQUEST FOR ADMISSION NO. 108:

Admit that the February 25, 2021 denial letter stated that CSAA had "concluded" its investigation and "concluded" that its insured was not liable, but that the factual basis for that conclusion could

not have included the 911 audio recording, body-worn camera footage, or CAD records because CSAA had not obtained them at the time the denial was issued.

REQUEST FOR ADMISSION NO. 109:

Admit that by issuing the February 25, 2021 denial letter stating that its investigation was "concluded" and that its insured was "not liable" without having obtained or reviewed the 911 audio recording, body-worn camera footage, or CAD records, CSAA Insurance Exchange failed to comply with the requirements of Insurance Code section 790.03(h)(3), Insurance Code section 790.03(h)(13), and California Code of Regulations, title 10, section 2695.7(d).

REQUEST FOR ADMISSION NO. 110:

Admit that CSAA Insurance Exchange, as a California-licensed insurer, is subject to and required to comply with California Insurance Code section 790.03 and the Fair Claims Settlement Practices Regulations set forth in California Code of Regulations, title 10, chapter 5, subchapter 7.5.

Respectfully submitted,

Dated: March 9, 2026

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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